

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

Index No.

703775/2014

Purchased

5/30/14

RONALD JOHNSON,

Plaintiff,

Plaintiff designates

Queens County as the place of trial

-against-

The basis of the venue is where the
tort arose and
where Plaintiff residesTHE CITY OF NEW YORK, COMMISSIONER
WILLIAM J. BRATTON IN HIS OFFICIAL
CAPACITY, DEPUTY INSPECTOR MILTIADIS
MARMARA AS THE COMMANDING OFFICER
OF THE 113TH PCT., P.O. MICHAEL CARLEO OF
THE 113TH PCT., SHIELD #934580, SGT.
CHRISTOPHER WARD, P.O. ROBERT
DEFERRARI, P.O. JOSE VASQUEZMIRANDA
and JOHN/JANE DOE 4-10SUPPLEMENTAL SUMMONS

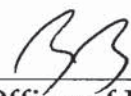
Plaintiff resides at

114-23 196 Street
St. Albans, NY 11412

Defendants

TO THE ABOVE NAMED DEFENDANT:

You ARE HEREBY SUMMONED, to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiffs Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete is this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Brooklyn, New York
August 11, 2015
Law Offices of Bryan Barenbaum
Attorneys for Plaintiffs
2060 Eastern Parkway
Brooklyn, New York 11207
(718) 421-1111

Defendants' Addresses:

CORPORATION COUNSEL OF THE
CITY OF NEW YORK
100 Church Street
New York, New York 10007

**COMMISSIONER RAYMOND KELLY IN
HIS WILLIAM J. BRATTON**
One Police Plaza
New York, New York 10038

**DEPUTY INSPECTOR MILTIADIS MARMARA
AS THE COMMANDING OFFICER OF THE 113TH PCT.**
167-02 Baisley Blvd.
Jamaica, NY 11434

**P.O. MICHAEL CARLEO OF THE 113TH PCT.
SHIELD #934580**
c/o 113th Precinct
167-02 Baisley Blvd.
Jamaica, NY 11434

SGT. CHRISTOPHER WARD
c/o 113th Precinct
167-02 Baisley Blvd.
Jamaica, NY 11434

P.O. ROBERT DEFERRARI
c/o 113th Precinct
167-02 Baisley Blvd.
Jamaica, NY 11434

P.O. JOSE VASQUEZMIRANDA
c/o 113th Precinct
167-02 Baisley Blvd.
Jamaica, NY 11434

JOHN/JANE DOE 4-10
c/o 113th Precinct
167-02 Baisley Blvd.
Jamaica, NY 11434

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
RONALD JOHNSON,

Plaintiff,

-against-

Index No.

703775/14

AMENDED
VERIFIED COMPLAINT

THE CITY OF NEW YORK, COMMISSIONER
WILLIAM J. BRATTON IN HIS OFFICIAL
CAPACITY, DEPUTY INSPECTOR MILTIADIS
MARMARA AS THE COMMANDING OFFICER
OF THE 113TH PCT., P.O. MICHAEL CARLEO OF
THE 113TH PCT., SHIELD #934580, SGT.
CHRISTOPHER WARD, P.O. ROBERT
DEFERRARI, P.O. JOSE VASQUEZMIRANDA
and JOHN/JANE DOE 4-10

Defendants
-----X

RONALD JOHNSON, by his attorneys, the LAW OFFICES OF BRYAN
BARENBAUM, respectfully alleges as follows:

AS AND FOR A FIRST CAUSE OF ACTION

1. At all times mentioned, Plaintiff **RONALD JOHNSON** was a resident of Queens County, City and State of New York.
2. At all times mentioned, Defendant **CITY OF NEW YORK**, was and is a municipal corporation duly organized and existing by virtue of the laws of the State of New York.
3. On or about the 18th day of February, 2014 and within ninety (90) days after the claim herein arose, the Plaintiff served a Notice of Claim in writing sworn to on their behalf upon the Defendant **CITY OF NEW YORK**, by delivering a copy thereof in duplicate to the officer designated to receive such process personally, which Notice of Claim advised the Defendant **CITY**

OF NEW YORK, of the nature, place, time and manner in which the claim arose, the items of damage and injuries sustained so far as was then determinable.

4. At least thirty (30) days have elapsed since the service of the claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety (90) days after the happening of the event upon which the claims are based.
5. On or about the 10th day of April, 2014 and within ninety (90) days after the claim herein arose, the Plaintiff served a Notice of Claim in writing sworn to on their behalf upon the Defendant CITY OF NEW YORK, and upon the Defendant MICHAEL CARLEO, by delivering a copy thereof in duplicate to the officer designated to receive such process personally, which Notice of Claim advised the Defendants CITY OF NEW YORK and MICHAEL CARLEO, of the nature, place, time and manner in which the claim arose, the items of damage and injuries sustained so far as was then determinable.
6. At least thirty (30) days have elapsed since the service of the claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety (90) days after the happening of the event upon which the claims are based.
7. The Plaintiff has complied with the request of the municipal Defendants for an oral examination pursuant to Section 50-H of the General Municipal Law

and/or the Public Authorities Law and/or no such request was made within the applicable period.

8. Upon information and belief, at all times mentioned, Defendants **COMMISSIONER WILLIAM J. BRATTON IN HIS OFFICIAL CAPACITY, DEPUTY INSPECTOR MILTIADIS MARMARA AS THE COMMANDING OFFICER OF THE 113TH PCT., P.O. MICHAEL CARLEO OF THE 113TH PCT., SHIELD #934580, SGT. CHRISTOPHER WARD, P.O. ROBERT DEFERRARI, P.O. JOSE VASQUEZMIRANDA, and JOHN/JANE DOE 4-10** were and are police officers of the Defendant City of New York, and at all times herein were acting in such capacity as the agents, servants and employees of the Defendant, **THE CITY OF NEW YORK**.
9. Upon information and belief, on or about January 17, 2014, at approximately 1:12 P.M. in the vicinity of 114-23 196 Street, County of Queens, State of New York the Defendants jointly and severally in their capacity as police officers, wrongfully touched, grabbed, harmed, kicked, struck, handcuffed and seized the Plaintiff **RONALD JOHNSON**, in an excessive manner about his person, causing him physical pain and mental suffering. At no time did the Defendants have legal cause to grab, harm, kick, strike, handcuff seize or touch the Plaintiff, nor did the Plaintiff consent to this illegal touching nor was it privileged by law.

AS AND FOR A SECOND CAUSE OF ACTION

10. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "9" with full force and effect as though set forth at length herein.

11. Upon information and belief, on or about January 17, 2014, at approximately 1:12 P.M. in the vicinity of 114-23 196 Street, County of Queens, State of New York the Defendants, jointly and severally did place Plaintiff **RONALD JOHNSON** in imminent fear of physical contact by approaching the Plaintiff with their loaded firearms, outstretched limbs and other objects which they used to physically seize, strike, kick and restrain the Plaintiff. All of the above actions placed the Plaintiff in imminent fear of physical contact. At no time did the Plaintiff consent to the unlawful actions of the Defendants.

AS AND FOR A THIRD CAUSE OF ACTION

12. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "11" with full force and effect as though set forth at length herein.
13. Upon information and belief on or about January 17, 2014, at approximately 1:12 P.M. in the vicinity of 114-23 196 Street, County of Queens, State of New York the Defendants, jointly and severally without any warrant, order or other legal process and without any legal right, wrongfully and unlawfully arrested the Plaintiff, restrained him and his liberty and then took him into custody to a police station in the County of the Queens.
14. Upon information and belief, the Plaintiff was brought to a holding cell in the Police Station where he was severely beaten and brutalized by Defendants including **P.O. MICHAEL CARLEO OF THE 113TH PCT., SHIELD #934580, SGT. CHRISTOPHER WARD, P.O. ROBERT DEFERRARI, P.O. JOSE VASQUEZMIRANDA** to an extent that his injuries required emergency surgery.

15. Upon information and belief, the other Officers, including Defendants **JOHN/JANE DOE 4-10**, in the Police Station willfully ignored and/or observed and failed to act to stop the beating.
16. Upon information and belief, the Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement.

AS AND FOR A FOURTH CAUSE OF ACTION

17. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "16" with full force and effect as though set forth at length herein.
18. Upon information and belief, Plaintiff was then transported to Jamaica Hospital Medical Center where he underwent surgery.
19. Upon information and belief, Plaintiff remained in Jamaica Hospital Medical Center for approximately three days.
20. Upon information and belief, while Plaintiff remained in Jamaica Hospital Medical Center the Defendants, jointly and severally without any warrant, order or other legal process and without any legal right, intentionally and wrongfully and unlawfully restrained and confined Plaintiff and his liberty and kept him in custody at Jamaica Hospital Medical Center. Plaintiff was conscious of his confinement.

AS AND FOR A FIFTH CAUSE OF ACTION

21. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in

Paragraphs "1" through "21" with full force and effect as though set forth at length herein.

22. Upon information and belief, Plaintiff was then transported back to the Police Station and then to Central Booking.
23. Upon information and belief, while Plaintiff remained in the Police Station and then Central Booking the Defendants, intentionally and jointly and severally without any warrant, order or other legal process and without any legal right, intentionally and wrongfully and unlawfully restrained and confined Plaintiff and his liberty and kept him in custody.
24. Upon information and belief, the Defendants then charged him with the crimes on Docket No. 2014QN003710 . The Plaintiff was thereafter held in custody over the course of approximately twenty (20) hours until he was released on his own recognizance. The Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement.

AS AND FOR A SIXTH CAUSE OF ACTION

25. Plaintiff incorporates, repeats, and re-alleges all of the allegations contained in Paragraphs "1" through "24" with full force and effect as though set forth at length herein.
26. Upon information and belief, on or about January 17, 2014 and from that time until the plea of an "Adjournment in Contemplation of Dismissal" of the

charges on or about January 19, 2014 was entered which was at the time a relatively favorable termination for the accused by the Honorable Judge presiding at, Criminal Court of The City of New York - Queens County, Defendants **THE CITY OF NEW YORK, COMMISSIONER WILLIAM J. BRATTON IN HIS OFFICIAL CAPACITY, DEPUTY INSPECTOR MILTIADIS MARMARA AS THE COMMANDING OFFICER OF THE 113TH PCT., P.O. MICHAEL CARLEO OF THE 113TH PCT., SHIELD #934580 , SGT. CHRISTOPHER WARD, P.O. ROBERT DEFERRARI, P.O. JOSE VASQUEZMIRANDA, and JOHN/JANE DOE 4-10**, deliberately and maliciously prosecuted Plaintiff **RONALD JOHNSON**, an innocent man without any probable cause whatsoever, by filing or causing a criminal court complaint to be filed in the Criminal Court of the City of New York, Queens County, for the purpose of falsely accusing the plaintiff of violations of the criminal laws of the State of New York.

27. Upon information and belief, the Defendants, jointly and severally, their agents, servants or employees failed to take reasonable steps to stop the prosecution of the Plaintiff and instead maliciously and deliberately provided false and/or incomplete information to the District Attorney's office to induce prosecution of the Plaintiff and due to the absence of probable cause malice can be inferred.
28. Upon information and belief, the commencement of these criminal proceedings under Docket No. 2014QN003710 was malicious and began in malice and without probable cause, so that the proceedings could succeed by the Defendants.

29. Upon information and belief, as a result of the malicious prosecution, Plaintiff was deprived of his liberty and suffered the humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution.

AS AND FOR A SEVENTH CAUSE OF ACTION

(This Cause of action only applies against the Individually named Police Officers and those Identified as John/Jane Doe 4-10 -whose identities are not yet known by Plaintiff -not the City of New York or officers sued in their official capacity)

30. Plaintiff repeats, reiterates, and re-alleges all of the allegations contained in paragraphs "1" through "29" as it set forth at length herein.
31. Upon information and belief, Defendants **P.O. MICHAEL CARLEO OF THE 113TH PCT., SHIELD #934580, SGT. CHRISTOPHER WARD, P.O. ROBERT DEFERRARI, P.O. JOSE VASQUEZMIRANDA, and JOHN/JANE DOE 4-10** were at all times relevant, duly appointed and acting officers of the City of New York Police Department.
32. Upon information and belief, at all times mentioned herein, said police officers were acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.
33. Upon information and belief, Plaintiff **RONALD JOHNSON** is and at all times relevant herein, a citizen of the United States and a resident of Queens County in the State of New York and brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.

34. Upon information and belief, the Defendant **CITY OF NEW YORK** is a municipality duly incorporated under the laws of the State of New York.
35. Upon information and belief, on or about January 17, 2014, the Defendants, armed police, while effectuating the seizure of the Plaintiff **RONALD JOHNSON**, did search, seize, assault and commit a battery and grab the person of the Plaintiff without a court authorized arrest or search warrant. They did physically seize the person of the Plaintiff during the arrest process in an unlawful and excessive manner. The Plaintiff was falsely arrested, unlawfully imprisoned, physically harmed, mentally harmed, emotionally harmed and maliciously prosecuted without the Defendants possessing probable cause to do so.
36. Upon information and belief, the above action of the Defendants resulted in the Plaintiff being deprived of the following rights under the United States Constitution:
- a. Freedom from assault to his person;
 - b. Freedom from battery to his person;
 - c. Freedom from illegal search and seizure;
 - d. Freedom from false arrest;
 - e. Freedom from malicious prosecution;
 - f. Freedom from the use of excessive force during the arrest process;
 - g. Freedom from unlawful imprisonment.
37. Upon information and belief, the Defendants subjected the Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights used the fourth and

fourteenth amendments of the United States Constitution.

38. Upon information and belief, the direct and proximate result of the Defendants' acts are that the Plaintiff has suffered severe and permanent injuries of a psychological nature and of a physical nature. He was forced to endure pain and suffering, all to his detriment.

AS AND FOR A EIGHTH CAUSE OF ACTION

39. Plaintiff incorporates, repeats and re-alleges all of the allegations contained in Paragraphs "1" through "39" with full force and effect as though set forth at length herein. (This Cause of Action applies to the City of New York and the defendant officers sued in their official capacity should be characterized as a "Monell" claim.)
40. Upon information and belief, Defendants **CITY OF NEW YORK, COMMISSIONER WILLIAM J. BRATTON IN HIS OFFICIAL CAPACITY, DEPUTY INSPECTOR MILTIADIS MARMARA AS THE COMMANDING OFFICER OF THE 113TH PCT.** have grossly failed to train and adequately supervise its police officers in the fundamental law of arrest, search and seizure especially when its police officers are not in possession of a court authorized arrest warrant and where an individual, especially as here, has not committed a crime and has not resisted arrest, that its police officers should only use reasonable force to effectuate an arrest and the arrest should be based on probable cause.
41. Upon information and belief, **CITY OF NEW YORK, COMMISSIONER WILLIAM J. BRATTON IN HIS OFFICIAL CAPACITY, DEPUTY**

INSPECTOR MILTIADIS MARMARA AS THE COMMANDING OFFICER OF THE 113TH PCT. were negligent by failing to implement a policy with its Police Department and instruct police officers who, absent the consent of the Plaintiff (or similarly situated individuals) or without the possession of a court authorized arrest a search warrant, said police officers of the City of New York are not to arrest individuals such as the Plaintiff here where probable cause is lacking and the use of force should only be reasonable when an individual resists arrest and should not be used where a criminal defendant is not resisting arrest.

42. Upon information and belief, **CITY OF NEW YORK, COMMISSIONER WILLIAM J. BRATTON IN HIS OFFICIAL CAPACITY, DEPUTY INSPECTOR MILTIADIS MARMARA AS THE COMMANDING OFFICER OF THE 113TH PCT.** is negligent due to its failure to implement a policy with its Police Department or actively enforce the law, if any of the following are lacking:
1. Probable cause must be present before an individual such as the Plaintiff herein can be arrested.
 2. Excessive force cannot be used against an individual who does not physically resist arrest.
 3. An individual who sustains physical injury at the hands of the police during the arrest process should receive prompt medical attention.
43. Upon information and belief, the foregoing acts, omissions and systemic failures are customs and policies of the **CITY OF NEW YORK,**

COMMISSIONER WILLIAM J. BRATTON IN HIS OFFICIAL CAPACITY, DEPUTY INSPECTOR MILTIADIS MARMARA AS THE COMMANDING OFFICER OF THE 113TH PCT. which caused the police officers to falsely arrest, maliciously prosecute, seize illegally and search the Plaintiff commit an assault/battery to his person and denied him prompt medical attention under the belief that they would suffer no disciplinary actions for their failure to take proper or prudent steps in this case.

44. Upon information and belief, the gross failures of the CITY OF NEW YORK, COMMISSIONER WILLIAM J. BRATTON IN HIS OFFICIAL CAPACITY, DEPUTY INSPECTOR MILTIADIS MARMARA AS THE COMMANDING OFFICER OF THE 113TH PCT. to train and supervise its officers have led to a widespread custom and practice in the NYPD of highly aggressive policing that results in police officers routinely violating citizens' Constitutional Amendment rights by arresting them without a warrant or probable cause, forcibly entering their residences without a search warrant or other legitimate reason, and using excessive and unreasonable force when making arrests. These practices are persistent and widespread, and amount to a defacto policy of the New York City Police Department.

45. Upon information and belief, to demonstrate this de facto policy of unconstitutional dimension, one need only look to the drastic increase over the past few years in the number of claims brought against the City of New York and/or members of the New York City Police Department alleging unlawful police action, including false arrest, assault and battery, excessive use of force, and other civil rights violations. According to the City of New York Office of the Comptroller Claims Reports for the recent Fiscal Years, the total number of police action claims brought number in the thousands , which cost the

City millions of dollars in awards and settlements. The amounts of claims have increased year by year. The statistics presented in the City of New York Office of the Comptroller Claims Reports show a pattern and practice of abuse that is widespread and consistent, and demonstrates that the Municipal Defendants are, and have been, aware that their failures to adequately train and supervise their officers in the area of search and seizure law have led to numerous instances of violations of citizens' Constitutional Amendment rights, and that they have failed, and continue to fail, to take adequate measures to rectify the problem, including sufficient training of its officers to reduce the amount of claims involving unlawful police action.

46. Upon information and belief, as these same fact patterns have come up over the past twenty-five (25) years with alarming frequency as evidenced by past notice of claims and lawsuits filed with the City of New York demonstrate a pattern by the City's police officers of continued violations of individuals similarly situated to the plaintiff. The pattern demonstrates that either a defacto policy/custom exists to allow this behavior by failing to discipline its officers or this is a custom of its police officers who have no and/or insufficient training and/or no proper supervision and/or disciplinary penalties assessed against them for continued acting in an unconstitutional manner. This represents at least a de facto policy by the City of New York in countenancing unconstitutional behavior, by not disciplining and/or not properly supervising/training its individual police officers in the proper procedure of arresting or not arresting.

47. Upon information and belief, to demonstrate a de facto policy of unconstitutional dimension, one might only look at the stop and frisk program initiated by

Former Commissioner Raymond Kelly, who has been NYPD Commissioner for over ten (10) years.

48. Upon information and belief, on or before April 2, 2010, the City and the NYPD had instituted a highly aggressive "Stop and Frisk" program or policy that was carried out by its police officer employees, including the named defendant officers.

49. Upon information and belief, over the last decade, the number of reported annual "street stops" rose significantly. Upon information and belief, said rise is due to the policies, directives and procedures implemented or approved by the "City" and/or "NYPD".

50. Upon information and belief, as part of its Stop and Frisk Program, the City, and the NYPD, provide multiple levels of training that covered Stop and Frisk procedures. That includes, but is not limited to, a workshop on Stop and Frisk, videos about the law of reasonable suspicion, patrol guidelines, Operational memorandum and ongoing training after graduating from the Police Academy.

51. Upon information and belief, this program, hereinafter referred to as "Stop and Frisk", disproportionately targeted minorities, males and/or youths for stop, question and/or frisks, resulting in the excessive use of force disproportionately against minorities, and violated the constitutional rights of citizens of New York City, including citizens residing within the confines of Bronx County.

frisk was pretextual and/or discriminatory in nature. Upon information and belief, frisks and/or searches are conducted without justifiable reasons.

58. Upon information and belief, the City and/or NYPD, either condoned the use of stop and frisk program, or the use of force in conjunction with it, as “means to an end”, or acted with deliberate indifference to the knowledge that it was being utilized in that manner in a vast number of cases where there was no reasonable suspicion or no evidence of any criminality that would justify the use of any force, or force to the degree it was used, much less the initial stop and frisk.

59. Upon information and belief, the City, and/or NYPD sought to justify the tremendous increase in the stop and frisk program by claiming that the program helped rid the City of illegal guns. Yet, that contention or rationale is not statistically borne out. Nor would it serve as justification to violate the laws of the United States Constitution or the State of New York.

60. Upon information and belief, the City and/or NYPD acted with deliberate indifference to: statistical evidence that enforcement or application of the “Stop and Frisk” program was highly unlikely to result in an arrest, a summons or the recovery of weapons or contraband.

61. Upon information and belief, in fact, the City and/or NYPD were deliberately indifferent to statistical evidence/reports/information/complaints and other information that they possessed that indicated that: the stop and frisk program was targeting minorities, targeting minority communities or precincts; evidence that the stop and frisk program was racially biased; the program was targeting youths; officers were using force, including unnecessary or excessive force on carrying out this program; the program was being unconstitutionally applied; the training police officers received was

52. Upon information and belief, in the matter of David Floyd et al. v. City of New York at al. 283 FRD 153, United States District Court, Southern District of New York, Justice Scheindlin, stated that it is indisputable that the NYPD has an enormous stop and frisk program. There were millions of documented stops between 2004 and 2009. These stops were made pursuant to a policy that is designed, implemented and monitored by the NYPD administration.

53. Upon information and belief, statistical evidence further shows that pursuant to the NYPD stop and frisk policies and procedures, a great majority of civilians who were subjected to stop, question and/or frisk had not committed any crime, and that the NYPD engaged in said actions without reasonable suspicions of criminality. Furthermore, statistics show that blacks and Latinos were disproportionately targeted for stops, summons, arrests and excessive use of force.

54. Upon information and belief, it was statistically revealed that of the reported stops and frisks conducted by the NYPD between 2004 and 2009, officers' "suspicions" of criminality was wrong nearly 9 out of 10 times.

55. Upon information and belief, the City, NYPD were long aware of the racial disparity of police stop and frisks.

56. Upon information and belief, the defendants did not adopt proposals and suggestions to amend their actions, policies and guidelines, and still continued to stop, frisk, search and use force on minorities in a disproportionate manner and target their stop and frisk polices in predominately non-white precincts within the City of New York.

57. Upon information and belief, police officers routinely engage in "stops" and then attempt to justify the stop and/or frisk, when in fact the basis for the stop or stop and

inadequate, and that there was a need for proper training in the academy, for supplemental training in service, and for in-field supervision and training in the laws of the 4th Amendment, the legal use of force, for reasonable suspicion and general police guidelines and search and seizure laws and parameters.

62. Upon information and belief, the City and/or NYPD, acted with deliberate indifference that the aforementioned issues would, could and did result in the countless violations of constitutional rights of its citizenry.

63. Upon information and belief, prior to January 17, 2014, the City and/NYPD, failed to require that precinct commanders audit each officer worksheets, and failed to maintain or develop a system or methodology for identifying and tracking police officers who receive a baseline number of civilian complaints related to improper stops, improper frisks or searches, unnecessary or excessive use of force, threats, illegal entry into citizen's homes and/or discourtesy.

64. Upon information and belief, the stop and frisk program especially targeted minorities.

65. Upon information and belief, the "stop and frisk" program: targeted or was applied, in a discriminatory manner against minorities; was applied or enforced in predominately minority communities.

66. Upon information and belief, the racial, gender and age disparity of the statistics could not and should not have been ignored.

67. Upon information and belief, the NYPD issued a Department Operations Order in 2002 prohibiting racial profiling. Nevertheless, upon information and belief, racial profiling continued to be utilized as a policing tool of the NYPD. Moreover, there was no Operations Order or directive prohibiting any type of gender or age bias application of

policing practices in place on that date.

68. Upon information and belief, Former Police Commissioner Kelly has stated that the Stop and Frisk Program, and the “stops” thereunder, serve as a deterrent to criminal activity, which includes the criminal possession of a weapon. Therefore, he endorsed, and upon information and belief, the Current Commissioner continued, on the date of the subject incident, to endorse said program and have it applied by the police officers under his command, although said program was being used to stop and stop and frisk citizens without reasonable suspicion, and in a racially biased manner.

69. Upon information and belief, this Stop and Frisk program was in effect on January 17, 2014 and was trained, implemented and overseen throughout the City of New York and all precincts therein, including the 113th Precinct by **P.O. MICHAEL CARLEO OF THE 113TH PCT., SHIELD #934580, SGT. CHRISTOPHER WARD, P.O. ROBERT DEFERRARI, P.O. JOSE VASQUEZMIRANDA, and JOHN/JANE DOE 4-10.**

70. Upon information and belief, the most common reason used by the NYPD to justify stopping civilians of New York City, almost 90% of whom had committed no crime or violation, falls predominantly within the category “furtive movements.” In 2011, that reason was given in 51.3% of the total number of stops.

71. Upon information and belief, however upon information and belief, the **City and/or NYPD and/or Bratton and/or Marmara**, either failed to train officers what constitutes “furtive movements”, or acted with deliberate indifference to the need enhance or supplement training in the area; they acted with deliberate indifference to the unequal application of stop and frisk procedures when “furtive movements” are committed by “whites”, not resulting in “stops”, while the same movements when committed by minorities resulted in “stops”; and they acted deliberate indifference to the knowledge that

“furtive movements” was not a statistically reliable marker of possession of contraband, weapon, or that a person has committed, or is about to commit a crime. In sum, “furtive movements” has been statistically proven to be unreliable to establish reasonable suspicion to justify a stop, or a stop, question and frisk.

72. Upon information and belief, the aforementioned statistical proof shows that said reasons or rationale for said stops were inaccurate, unreliable, untrue or without statistical probability of success.

73. Upon information and belief, further evidence of the defendants’ over aggressive stop and frisk policies which targeted minority communities, such as the Wakefield section of the Bronx, can be found in the Trespass Affidavit Program, formerly known as Operation Clean Halls. In *Ligon v. City of New York*, No. 12, Civ 2274, plaintiff brought an action alleging that the NYPD’s trespass stops outside TAP buildings are often without reasonable suspicion, violating the 4th Amendment rights. Justice Scheindlin, agreed.

74. Upon information and belief, said Stop and Frisk program was established, maintained, supervised, continued, applied and monitored to meet arrest/summons, numbers/quotas and to establish and/or meet performance standards.

75. Upon information and belief, the NYPD, City and/or Bratton established performance standards which demanded, or resulted in increased levels of stops and frisks.

76. Upon information and belief, in the Floyd case, Justice Scheindlin cited evidence of a quota system which included a minimum number of monthly “stops.”

78. Upon information and belief, arrest quotas and summons quotas, often couched by the defendants as “performance standards”, are ingrained as a part of a NYPD officer’s job, leading to shortcuts and violations of citizen’s constitutional rights to meet

those so called performance levels.

79. Upon information and belief, further evidence of a pattern, policy or custom is evidenced by recent Press Articles documenting rampant police abuse where the officers involved were not disciplined in any meaningful manner but rather promoted to a higher position.

AS AND FOR A NINTH CAUSE OF ACTION

80. Plaintiff incorporates, repeats and re-alleges all of the allegations contained in Paragraphs "1" through "79" with full force and effect as though set forth at length herein.

81. Upon information and belief, an overly aggressive policing policy was in effect on January 17, 2014 and was taught, implemented, and overseen throughout the City of New York and all precincts therein, including the 113th Precinct by Defendants **P.O. MICHAEL CARLEO OF THE 113TH PCT., SHIELD #934580, SGT. CHRISTOPHER WARD, P.O. ROBERT DEFERRARI, P.O. JOSE VASQUEZMIRANDA, and JOHN/JANE DOE 4-10.**

82. Upon information and belief, at all relevant times hereunder, the 113th Precinct was a particularly aggressive precinct in searching and/or seizing individuals without probable cause, entering and searching premises without justification or probable cause, and using excessive force during arrests.

83. Upon information and belief, Plaintiff here was unlawfully seized and arrested without probable cause when the defendant officers dragged him out of his car, without a warrant or other legitimate reason, and handcuffed him and threw against his car and later into a cell and beat him and caused injuries that required emergency surgery.

This false arrest, confinement, assault and battery, and use of excessive force by the officers was the direct result of the gross failures of the **CITY OF NEW YORK, COMMISSIONER WILLIAM J. BRATTON IN HIS OFFICIAL CAPACITY, DEPUTY INSPECTOR MILTIADIS MARMARA AS THE COMMANDING OFFICER OF THE 113TH PCT** to implement adequate training and supervision in the law of search and seizure and use of force, and the overly aggressive policing policies in effect on January 17, 2014.

AS AND FOR A TENTH CAUSE OF ACTION

84. Plaintiff incorporates, repeats and re-alleges all of the allegations contained in Paragraphs "1" through "83" with full force and effect as though set forth at length herein.
85. Upon information and belief, Defendants actions violated the laws of the State of New York.
86. Upon information and belief, by reason of the foregoing, Plaintiff suffered physical injuries, mental injuries, deprivation of liberty and privacy, terror, humiliation, damage to reputation and other psychological injuries. All of said injuries may be permanent.
87. Upon information and belief, as a result of the acts and conduct complained of herein, Plaintiff has suffered and will continue to suffer, physical pain, emotional pain, suffering, permanent disability, inconvenience, injury to his reputation, loss of enjoyment of life, loss of liberty and other non-pecuniary losses. Plaintiff has further experienced severe emotional and physical distress.

WHEREFORE, Plaintiff respectfully request that judgment be entered:

1. Awarding Plaintiff compensatory damages in a full and fair sum to be determined by a jury in the amount of damages greater than the jurisdictional limit of any lower court where otherwise have jurisdiction;
2. Awarding Plaintiff punitive damages in an amount to be determined by a jury;
3. Awarding Plaintiff the costs and disbursements of this action;
4. Awarding Plaintiff reasonable attorneys' fees and
5. Granting such other and further relief as to this Court deems proper.

Dated: Brooklyn, New York
August 11, 2015



Law Offices of Bryan Barenbaum
Attorneys for Plaintiffs
2060 Eastern Parkway
Brooklyn, New York 11207
(718) 421-1111

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
RONALD JOHNSON,

Plaintiff,

-against-

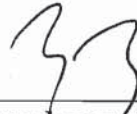
THE CITY OF NEW YORK, COMMISSIONER
WILLIAM J. BRATTON IN HIS OFFICIAL
CAPACITY, DEPUTY INSPECTOR MILTIADIS
MARMARA AS THE COMMANDING OFFICER
OF THE 113TH PCT., P.O. MICHAEL CARLEO OF
THE 113TH PCT., SHIELD #934580, SGT.
CHRISTOPHER WARD, P.O. ROBERT DEFERRARI,
P.O. JOSE VASQUEZMIRANDA, and
JOHN/JANE DOE 4-10

Defendants
-----X

I, **BRYAN BARENBAUM**, an attorney admitted to practice in the courts of New York State, state that I am a member of the firm of **LAW OFFICES OF BRYAN BARENBAUM**, the attorneys of record for THE Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by Plaintiff is because Plaintiff resides outside the county where deponent maintains his office.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Brooklyn, New York
August 11, 2015



Bryan Barenbaum, Esq.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
RONALD JOHNSON,

Plaintiff,

-against-

THE CITY OF NEW YORK, COMMISSIONER
WILLIAM J. BRATTON IN HIS OFFICIAL
CAPACITY, DEPUTY INSPECTOR MILTIADIS
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Defendant.

-----X

Index No.
703775/14

SUPPLEMENTAL SUMMONS AND VERIFIED AMENDED COMPLAINT

LAW OFFICES OF BRYAN BARENBAUM
Attorney for Plaintiff
2060 Eastern Parkway
Brooklyn, New York 11207
(718) 421-1111